

9:01 4	21CV391414	<i>Satish Ramachandran</i> v. <i>City of Los Altos, et al.</i>	Hearing: Order To Show Cause In its May 20, 2026 Order, entitled “Order To Show Cause Why An Order For Sale Should Not Be Issued As To The Dwelling Described As To 889 Santa Rita Avenue, Los Altos, CA 94022” (the “May 20, 2026 OSC”), the Court, having considered the Application for Order for Sale of Dwelling filed by Defendant Judgment Creditor City of Los Altos (the “City”) on April 22, 2026 (“the Application”), the Court ORDERED Judgment Debtor Satish Ramachandran (“Ramachandran”) to appear on July 8, 2026 at 9:01 AM in Department 16 To Show Cause, if any, why the Application should not be granted and an order should not be issued for the sale of the real property commonly known as 889 Santa Rita Avenue, Los Altos, California 94022, APN: 167-18-060 (the “Property”). On May 28, 2026, the City filed Proof of Service on Ramachandran of (1) the Application, (2) the May 20, 2026 OSC, and (3) Notice of this July 8, 2026 Hearing. Ramachandran was properly served and has Notice of this July 8, 2026 Hearing. The City’s position is that as all statutory requirements of Code of Civil Procedure §§ 704.740 <i>et seq.</i> for the sale of a dwelling to enforce a money judgment have been met, the City is entitled to enforce its judgments in this case against the Property now. At the July 8, 2026 OSC Hearing, Ramachandran has the opportunity to be heard on why an Order for sale of the Property should not be made pursuant to the Application. After giving all parties the opportunity to be heard, the Court will decide whether to issue an Order for sale of the Property under Code of Civil Procedure § 704.780(b). SO ORDERED.
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9:01 5			
9:00 1	23CV413053	<i>Mary Volz</i> v. <i>R J Cassibba, et al.</i>	Order on Defendants’ Motion for Summary Judgment or, in the alternative, for Summary Adjudication <i>See</i> Line 1 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 2	23CV416999	<i>Vidushi Savant</i> v. <i>Vikas Kedia, et al.</i>	Order on: 1. Defendants’ Demurrer to Plaintiffs’ Second Amended Complaint & 2. Defendants’ Motion to Strike Plaintiff’s Second Amended Complaint <i>See</i> Line 2 below for complete tentative ruling on both the Demurrer and Motion to Strike. After the hearing, the Court will prepare and file the formal Order.

9:00 3	23CV416999	<i>Vidushi Savant</i> <i>v.</i> <i>Vikas Kedia, et al.</i>	Order on Defendants’ Motion to Strike Plaintiff’s Second Amended Complaint <i>See Line 2 below for complete tentative ruling on both the Demurrer and Motion to Strike.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 4	24CV432259	<i>Anna Aleman</i> <i>v.</i> <i>Amazon Logistics, Inc., et al.</i>	Order on Plaintiff’s Motion to Compel Defendant R-C Interstate Corp. to produce further responses to Plaintiff’s Form Interrogatories, Set One <i>See Line 4 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 5	24CV451521	<i>Elizabeth Dawkins</i> <i>v.</i> <i>Annabelle A. Alday, et al</i>	Order on Defendant’s Motion to Compel Responses to Interrogatories, to Deem Requests for Admissions, Set One, Admitted, and for Sanctions <i>See Line 5 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.

9:00 6	24CV452118	<i>Jane Doe</i> <i>v.</i> <i>Vivek Paul Gundotra, et al.</i>	Order on Defendant's Motion to Compel Plaintiff to Answer Deposition Questions <i>See Line 6 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 7	25CV457216	<i>Jayanthi Rangarajan</i> <i>v.</i> <i>Sutter Law Firm PC, et al.</i>	Order on Defendant's Demurrer to Plaintiff's First Amended Complaint <i>See Line 7 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 8	26CV490000	<i>Kevin Ortega</i> <i>v.</i> <i>Kelly Services Global, LLC, et al.</i>	Order on Defendant's Motion to Compel Arbitration and Stay Civil Action <i>See Line 8 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 9	2000-7-CV-401591	<i>National Credit Acceptance, Inc.</i> <i>v.</i> <i>Philip Parlan Anima, et al.</i>	Order on Defendant's Motion to Vacate Judgment <i>See Line 9 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
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9:00 <u>13</u>			
9:00 <u>14</u>			
9:00 <u>15</u>			

Line 1

Case Name: *Mary Volz v. R J Cassibba, et al.*

Case No.: 23CV413053

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

Defendants R J Cassibba, Victoria L Cassibba, and R J and Victoria Cassibba Revocable Trust (“Defendants”) move for Summary Judgment or, in the alternative, Summary Adjudication in favor of Defendants and against Plaintiff Mary Volz (“Plaintiff”) on the grounds that there is no triable issue of material fact and Defendants are entitled to judgment as a matter of law. Notice of Motion (the “Motion”) at 1:26-2:4 (filed: Jan. 28, 2026). The Motion is made under Code of Civil Procedure Section 437c on the grounds that Defendants did not own, possess, or control the public sidewalk where Plaintiff alleges she fell, and Defendants had no actual or constructive notice of any alleged dangerous condition. *Id.* at 2:6-9. Plaintiff cannot establish the essential elements of her premises liability claim against Defendants. *Id.* at 2:9-10.

The Motion came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Plaintiff brings this civil action against Defendants R.J. Cassibba, Victoria L. Cassibba, and the R.J. Cassibba and Victoria L. Cassibba Revocable Trust (collectively, “Defendants”).

On March 17, 2023, Plaintiff filed a complaint against Cassibba,¹ asserting claims for premises liability for negligence and dangerous condition of public property. Plaintiff alleged in her complaint that on May 4, 2022, she was walking northbound on the sidewalk of Church Street in Morgan Hill, California, when she tripped on a protruding segment sidewalk outside 90 E. Edmundson Avenue, causing her injuries of a broken nose and severe bruising on her face. (Complaint, p. 4.)

¹ Plaintiff’s complaint also named the City of Morgan Hill as a defendant and asserted a cause of action of general negligence against the City of Morgan Hill. On December 1, 2025, Plaintiff filed a request for dismissal with prejudice as to the City of Morgan Hill. Plaintiff is continuing the action against the remaining Defendants.